

BGL

OGC

TABLE OF AUTHORITIESCases

Carney v. Laird, 326 F.Supp. 741 (D.R.I. 1971), <i>aff'd</i> 462 F.2d 606 (1st Cir. 1972)	6
Coleman v. American Export Isbrandtsen Lines, Inc., 405 F.2d 250 (2d Cir. 1968)	10
Goldlawr v. Heiman, 369 U.S. 463 (1962)	12
International Shoe Co. v. State of Washington, 326 U.S. 310 (1945)	11
L.D. Reeder Contractors of Arizona v. Higgins Industries, Inc., 265 F.2d 768 (9th Cir. 1959)	11
Lowenstein v. Rooney, 401 F.Supp. 952 (S.D.N.Y. 1975)	8
McNutt v. General Motors Acceptance Corp., 298 U.S. 178 (1936)	11
Natural Resources Defense Council v. Tennessee Valley Authority, 459 F.2d 255 (2d Cir. 1972)	5, 8
Powers v. Mitchell, 463 F.2d 212 (9th Cir. 1972), <i>cert. den.</i> 409 U.S. 967 (1972)	10
Rimar v. McCowan, 374 F.Supp. 1179 (E.D. Mich. 1974)	5
Socialist Workers Party v. Attorney General of the U.S., 375 F.Supp. 318 (S.D.N.Y. 1974)	11
Taylor v. Love, 415 F.2d 1118 (6th Cir. 1969)	12
Wu v. Keeney, 384 F.Supp. 1161 (D.D.C. 1974)	9

Statutes and Rules

15 U.S.C. §22	8
15 U.S.C. §78aa	8
28 U.S.C. §1361, Pub. L. No. 87-748, 76 Stat. 744, §1	3, 4
28 U.S.C. §1391(e), Pub. L. No. 87-748, 76 Stat. 744, §2	<i>passim</i>
28 U.S.C. §1406(a)	12
Rule 4, Fed. Rules of Civ. Proc.	5, 11
Calif. Code Civil Proc. §410.10	11
U.S. Constitution, Fifth Amendment	8

TABLE OF AUTHORITIES (cont.)

Legislative Histories

H.R. Rep. No. 536, 87th Cong., 1st Sess. (1962)	3, 4, 5, 6, 7
S. Rep. No. 1992, 87th Cong., 2d Sess. (1962), reprinted in U.S. Code Cong. & Ad. News, pp. 2784-2787	3, 4, 5

1 RICHARD ERNST
635 Sacramento Street
2 Post Office Box 26314
San Francisco, California 94126
3 415-982-0211

4 Counsel for J. Edward Day

5 DONALD J. COHN
JAMES V. KEARNEY
6 WEBSTER & SHEFFIELD
One Rockefeller Plaza
7 New York, New York 10002
212-582-3370

8 Of Counsel
9

10 IN THE UNITED STATES DISTRICT COURT
11 FOR THE NORTHERN DISTRICT OF CALIFORNIA

12
13 STEPHANIE KIPPERMAN, etc.,)
14 Plaintiff,) No. C-75-1211-CBR
15 vs.)
16 JOHN A. McCONE, et al.,)
17 Defendants.)
18

19 This brief is submitted on behalf of J. Edward Day
20 ("Day") in reply to Plaintiff's Response and Opposition to
21 Defendants' Motions for Dismissal or for Summary Judgment
22 ("Plaintiff's Latest Response"), dated June 21, 1976.

23 The single issue presented by Day's motion to dismiss
24 is whether Plaintiff can maintain this action against Day in
25 this Court. The briefs previously filed on behalf of Day in
26 support of his motion set forth the reasons why this action should
27 be dismissed as to Day for lack of personal jurisdiction and im-
28 proper venue.¹

29 1/
30 In support of Day's motion to dismiss, the following briefs have
31 been filed: Brief in Support of the Motion of Defendant J. Edward
32 Day to Dismiss the Amended Complaint, filed January 15, 1976; Reply
REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 1

1 This Court expressed its agreement with the contentions
2 that it lacks personal jurisdiction over the individual defen-
3 dants, including Day, and that venue in the district is improper
4 (Memorandum of Opinion, pp. 13-14, note 5). Nothing in the
5 Government's Motion to Vacate affected any of the facts rele-
6 vant to Day's motion to dismiss for lack of jurisdiction and
7 improper venue. The facts remain exactly the same as when the
8 Court issued its Memorandum of Opinion.

9 In her Latest Response, Plaintiff merely re-argues
10 her position that 28 U.S.C. §1391(e) establishes that this Court
11 has personal jurisdiction over Day and that there is proper venue
12 in this Court. Plaintiff does not and cannot contest the clear
13 facts showing there is no jurisdiction or venue over Day in
14 this action, and she gives no reason why the issue of jurisdic-
15 tion over Day should be reconsidered by the Court.

16 Since this §1391(e) issue has been extensively briefed
17 and an opinion on it entered by this Court, we shall reply as
18 briefly as possible while meeting the new matter raised by Plain-
19 tiff at this late date. While the filing of this argument may
20 be an excess of caution, we hope that the issues of jurisdiction
21 and venue over Day may finally be put to rest and that he can be
22 dismissed from this case. This will leave the Plaintiff and the
23 Government before this Court to litigate the probabilities and
24 possibilities of Plaintiff's mail having been covered or inter-
25 cepted.

26 1 (cont.)/ Brief of Defendant J. Edward Day, filed February 4,
27 1976; Supplemental Brief of Defendant J. Edward Day in Support of
28 His Motion to Dismiss, filed March 3, 1976 (this brief was neces-
29 sitated by Plaintiff's filing of her Third Amended Complaint); and
30 Brief in Support of Motion to Enter an Order of Dismissal for
31 Lack of Jurisdiction over the Person, filed May 20, 1976.
32

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 2

1 Plaintiff argues that §1391(e) is an all-purpose statute
 2 that provides personal jurisdiction and venue and authorizes extra-
 3 territorial service with respect to Day, a private citizen. The
 4 clear language of §1391(e), made even clearer by its legislative
 5 history, simply does not apply to defendant Day.

6 On its face, §1391(e) applies only to "an officer or
 7 employee of the United States or any agency thereof acting in
 8 his official capacity or under color of legal authority". All
 9 verbs in this section are in the present tense, and there is no
 10 reference to former federal officials or private citizens.

11 Analysis of the legislative history of §1391(e) confirms
 12 what is apparent on its face.² The Senate and House Reports are
 13 almost identical. The bill under consideration became the Act
 14 of October 5, 1962, Pub. L. No. 87-748, 76 Stat. 744; it consisted
 15 of two sections. Section 1 is now 28 U.S.C. §1361. It was in-
 16 serted at the end of Chapter 85 of Title 28 of the United States
 17 Code, which is entitled "CHAPTER 85-DISTRICT COURTS; JURISDICTION".
 18 Section 2 of the Bill added subsection (e) to 28 U.S.C. §1391,
 19 which is found in "CHAPTER 87-DISTRICT COURTS; VENUE".

20 The Senate and House Reports described the purpose of
 21 Public Law No. 87-748 in almost identical words:

22 "The purpose of this bill is to make it possible
 23 to bring actions against Government officials and agen-
 24 cies in U.S. district courts outside the District of
 25 Columbia, which, because of certain existing limita-
 26 tions on jurisdiction and venue, may now be brought

27
 28 ^{2/} S. Rep. No. 1992, 87th Cong., 2nd Sess. (1962), as reprinted
 29 in U.S. Code Cong. & Ad. News (1962), pp. 2784-2787, and H.R. Rep.
 30 No. 536, 87th Cong., 1st Sess. (1962). [We shall hereafter refer
 31 to specific language in the Senate Report by simply designating
 32 the page in U.S. Code Cong. & Ad. News (1962).]

only in the U.S. District Court for the District of Columbia." (*H.R. Rep. No. 536* at 1; see also *S. Rep. No. 1992* at 2785)

Both reports state the effect of the legislation in almost identical language:

"This Bill will not give access to the Federal courts to an action which cannot now be brought against a Federal official in the U.S. District Court for the District of Columbia." (*S. Rep. No. 1992* at 2785; see also *H.R. Rep. No. 536* at 2)

Both reports explained that due to an historical accident, mandamus could be brought only in Washington, that this accident resulted in a heavy burden on the district court there, and that Public Law No. 87-748 was designed to remedy that situation.

The House Report clearly shows that §1361 and §1391(e) were passed as a common approach to solve a common problem and must be read together.

"Section 1 of this bill therefore amends chapter 85 of title 28 of the United States Code to provide specifically that all district courts shall have original jurisdiction over any action to compel an officer or employee of the United States or any agency thereof to perform his duty.

"Section 2 is the *venue* section of the bill. Its purpose is similar to that of section 1. It is designed to permit an action *which is essentially against the United States* to be brought locally rather than requiring that it be brought in the District of Columbia simply because Washington is the official residence of the officer or agency sued. It is not intended to create governmental liability where it does not now exist.

It is concerned only with the place where the action

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 4

1 may be brought." [Emphasis added] (*H.R. Rep. No. 536*
2 at 2)

3 This plain and simple statement of legislative history has been
4 found to be controlling on the courts in the interpretation of
5 this 1962 legislation. See *Natural Resources Defense Council*
6 *v. Tennessee Valley Authority*, 459 F.2d 255, 258 (2d Cir., 1972),
7 *Rimar v. McCowan*, 374 F.Supp. 1179, 1181-1182 (E.D. Mich. 1974).

8 At several places in the House Report, it is stressed
9 that the only actions covered by §1391(e) are those that are "in
10 essence against the United States" (*H.R. Rep. No. 536* at 3 and 4).
11 The same language appears in the Senate Report, *S. Rep. No. 1992*
12 at 2786. It is also made clear that §1391(e) "is intended to
13 facilitate review by the federal courts of administrative actions"
14 (*S. Rep. No. 1992* at 2785). The House Report also states:

15 "In order to give effect to the broadened venue
16 provision of this bill, it is necessary to modify the
17 service requirements under the Federal Rules of Civil
18 Procedure insofar as they apply to actions made possible
19 by this bill. Rule 4(f) restricts effective service to
20 the territorial limits of a State in which the district
21 court is held unless a statute specifically provides
22 for it to go beyond the territorial limit of that
23 State. Since this bill is designed to make a Federal
24 official or agency amenable to suit locally, the bill
25 provides that the delivery of the summons and complaint
26 to the officer or agency may be made by certified mail
27 outside of the territorial limits of the district in
28 which the action is brought." [Emphasis added] (*H.R.*
29 *Rep. No. 536* at 4)

30 There can be no doubt that Congress set out to and did limit the
31 application of §1391(e) to Government officials and agencies in
32 cases that are essentially against the Government to review

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 5

1 administrative actions. It does not apply to Day, who ceased
2 being a federal official 13 years ago and is being sued in tort
3 for damages.

4 *Carney v. Laird*, 326 F.Supp. 741 (D.R.I. 1971), *aff'd*
5 462 F.2d 606 (1st Cir. 1972), was a habeas corpus action dealing
6 with a naval officer. The plaintiffs there had served the Secre-
7 tary of Defense, the Secretary of the Navy and the Chief of
8 Naval Operations, all federal officials. The plaintiffs attempted
9 unsuccessfully to use §1391(e) to support a claim of jurisdiction
10 over these defendants. The District Court in Rhode Island wrote
11 [326 F.Supp. 741 at 744]:

12 "That provision [§1391(e)] relates only to proper
13 venue and was not intended by Congress to broaden the
14 availability of habeas corpus relief and I read it not
15 to have done so."

16 So, too, Congress took no action to broaden the availability of
17 tort relief against private citizens who are being sued personally
18 for money damages.³

19 Plaintiff's argument that §1391(e) applies to private
20 citizens who formerly were federal employees, as best we can
21 follow it, appears to be that the phrase "under color of legal
22 authority" has reference to suits against present federal offi-
23 cials "individually" (p. 14) and that this must be expanded to
24 former officials else the objective of §1391(e) would be totally
25 frustrated (p. 16).

26 Again, plaintiff conveniently ignores the clear legis-
27 lative history of §1391(e), including the portion quoted exten-

28 3/ Whether or not §1391(e) applies to a damage suit against
29 present Government officials is irrelevant with respect to Day,
30 although we believe the better view is that the section does not
31 encompass money damages.

32 REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 6

sively at p. 14 of Plaintiff's Latest Response. The House Report states that the words "acting under color of legal authority" were intended to include those cases where the action is "nominally" brought against the federal officer in his individual capacity and "not as a private citizen".

"Such actions are also in essence against the United States but are brought against the officer or employee as individuals only to circumvent what remains of the doctrine of sovereign immunity."

(H.R. Rep. No. 536 at 4, Plaintiff's Latest Response, p. 14)

The venue provision of §1391(e) therefore was designed to apply "where the action is based upon the *fiction* that the officer is acting as an individual" (*Ibid*, emphasis added).

Plaintiff's action against Day is not against him "nominally" and is not "in essence against the United States". Nor is Day named as a defendant "to circumvent what remains of the doctrine of sovereign immunity". Plaintiff's action against Day is against him *personally*, sounds in tort and seeks money damages. Section 1391(e) - deliberately placed by Congress in the venue chapter of title 28, and specifically limited by its language and legislative intent to federal officials and agencies in actions that are essentially against the United States and that previously could only have been brought in the United States District Court for the District of Columbia - does not confer jurisdiction or venue over Day.

Like any other private citizen, Day is subject to suit where he resides or where he has sufficient minimum contacts to satisfy due process requirements. The fact that he was once a federal employee years ago, in and of itself, does not make him subject to the personal jurisdiction of every federal district court in the 50 states. Section 1391(e) may

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 7

1 well have been designed to "remove the virtually impenetrable
2 barrier of procedural entanglement which has so frequently pro-
3 vided the government with de facto immunity from lawsuits"
4 (Plaintiff's Latest Response, p. 17). But that barrier had
5 nothing to do with personal damage claims against private citi-
6 zens, and it has been removed with respect to the Government.
7 Congress certainly did not intend in §1391(e) to strip from
8 this defendant his due process rights under the Fifth Amendment.
9 Even where Congress has purposefully set out to create private
10 rights and encourage private plaintiffs to engage in litigation
11 to carry out the purposes of certain statutes, it has still
12 limited venue to where the *defendant* is an inhabitant or where
13 it can be found or transacts business, *e.g.*, 15 U.S.C. §78aa
14 (Securities Acts) and 15 U.S.C. §22 (Anti-trust Acts). These
15 acts did not make the residence of the *plaintiff* the basis of
16 jurisdiction. Thus, there is indication of Congressional intent
17 not to violate the minimum contact requirement of due process.
18 Plaintiff's suggestion that Congress did just that with regard
19 to former federal officials by implication in §1391(e), without
20 a word or a thought, is totally devoid of merit.

21 The only case to the contrary is *Lowenstein v. Rooney*,
22 401 F.Supp. 952 (S.D.N.Y. 1975). It must be disregarded. First,
23 that case is distinguished from the instant action in that there
24 the plaintiff had alleged tortious acts in the forum state, New
25 York, and this allegation alone provided personal jurisdiction.
26 Second, that opinion is simply wrong in ignoring the clear lan-
27 guage of §1391(e) and its legislative history. Third, the court
28 failed to consider and follow the clear mandate of its own Circuit
29 Court as set forth in *Natural Resources Defense Council v. Tennes-*
30 *see Valley Authority, supra*. There, the Second Circuit stated
31 [459 F.2d 255, 259]:

32 "No one has suggested any tenable reason why

Congress would have wished to subject this essentially

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 8

1 local federal agency to a suit like this, relating
2 to the compliance of its operations in the Tennessee
3 Valley with federal law, in any federal district,
4 from Maine to Hawaii or from Alaska to Florida,
5 which is the residence of an organization claiming
6 the right to sue under today's liberalized notions
7 of standing. When the statute is read in its full
8 context, with realization of its purpose, and in
9 light of its legislative history, it is plain that
10 Congress did not so direct."

11 Similarly, there can be found no tenable reason to suggest that
12 Congress directed that a private citizen who once worked for the
13 Government could be sued in tort for money damages in any federal
14 district from Maine to Hawaii or from Alaska to Florida which
15 might be the residence of a plaintiff claiming the right to sue.
16 See *Wu v. Keeney*, 384 F.Supp. 1161, 1168 (D.D.C. 1974).

17 Plaintiff also argues that personal jurisdiction is
18 shown by the provision of §1391(e) for extraterritorial service
19 (Plaintiff's Latest Response, pp. 11-12). She cites no authority
20 supporting this proposition. While she cites the House Report
21 and quotes from it at page 11, the quoted language speaks only
22 of venue and makes no mention of jurisdiction. Similarly, the
23 quote from Professor Moore on page 11 speaks only of venue and
24 makes no mention of jurisdiction.

25 The mere fact that someone is served outside a court's
26 territorial limits does not give the court jurisdiction over the
27 person served.

28 "[A]lthough Rule 4 fixes the manner and scope of ser-
29 vice, it does not say when the person served is subject
30 to the jurisdiction of the court that served him.
31 Similarly, although Rule 4(f) provides for out-of-
32 state service on certain defendants, such service will

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 9

1 not be valid unless they have enough contacts with
2 the state of service to be subject to suit there."
3 *Coleman v. American Export Isbrandtsen Lines, Inc.*,
4 405 F.2d 250, 253 (2d Cir. 1968).

5 While personal jurisdiction cannot be obtained without proper
6 service, the mere following of the mechanics of service does not
7 automatically provide personal jurisdiction. The due process
8 requirement of minimum contacts must be met. In accord, the
9 Court of Appeals for this circuit has ruled that §1391(e) does
10 not extend the federal courts' jurisdiction over a local federal
11 agency located outside its territorial jurisdiction. See *Powers*
12 *v. Mitchell*, 463 F.2d 212, 213 (9th Cir. 1972), *cert. den.* 409
13 U.S. 967 (1972).

14 In his prior memoranda Day has already pointed out the
15 unconscionable burden that would be imposed on the status of
16 federal employment if ex-federal employees were subject to suit
17 in every district court in the nation (Brief in Support of the
18 Motion of J. Edward Day to Dismiss the Amended Complaint, p. 10).
19 Under Plaintiff's interpretation of §1391(e), former officials
20 such as Secretaries of Commerce and E.P.A. Administrators could
21 be sued with respect to actions taken by their agencies, for
22 which they were *nominally* responsible, in every and any district
23 where a resident claimed damages. If Congress intended to saddle
24 government employment with such consequences, which intent would
25 raise serious due process questions, it is reasonable to assume
26 Congress would have given the matter some consideration. There
27 would be specific legislative history as to such a controversial
28 proposal. Congress intended no such consequences. Former federal
29 officials, like all other United States citizens, are subject to
30 suit and answerable for their actions only according to the
31 "traditional notions of fair play and substantial justice" set

32 //

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 10

1 forth in *International Shoe Co. v. State of Washington*, 326 U.S.
2 310, 316 (1945).

3 This action against Day was originally filed in June,
4 1975, over one year ago. Plaintiff has filed no less than four
5 complaints, attempting on each occasion to set forth a complaint
6 against Day enforceable in this Court. She has briefed the issue
7 of personal jurisdiction three times. In her Latest Response,
8 Plaintiff confirms the futility of her position by suggesting -
9 after a year of litigation - that Defendant Day be required to
10 set forth the basis for personal jurisdiction over himself and
11 to suggest the proper forum for this action. It is axiomatic
12 that Plaintiff bears the burden of pleading and proving that this
13 Court has jurisdiction over Day. *McNutt v. General Motors*
14 *Acceptance Corp.*, 298 U.S. 178 (1936); *L.D. Reeder Contractors*
15 *of Arizona v. Higgins Industries*, 265 F.2d 768, 770 (9th Cir. 1959);
16 *Socialist Workers Party v. Attorney General of the U.S.*, 375 F.Supp.
17 318, 332 (S.D.N.Y. 1974).

18 The only venue provision that applies to Day is 28 U.S.C.
19 §1391(b), which provides venue where all the defendants reside
20 or the cause of action arose. Neither possible set of facts
21 exists to confer venue in this case in the Northern District of
22 California.⁴ Equally plaintiff has failed to demonstrate personal
23 jurisdiction over Day pursuant to Rule 4(f), Federal Rules of
24 Civil Procedure⁵, under the California long-arm statute. [*Calif-*
25 *ornia Code of Civil Procedure* §410.10]

26 Plaintiff possibly has her remedy in this district
27 against the Government and certainly has her remedy here under
28 the Freedom of Information Act court review. In any event, since

29 ^{4/} See pp. 4-9 of Defendant J. Edward Day's January 15, 1976
30 brief in support of motion to dismiss the amended complaint.

31
32 ^{5/} See pp. 10-14 of Day's January 15, 1976 brief.

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 11

no statute of limitations has run during the pendency of this litigation that would preclude Plaintiff from commencing a separate action in a proper forum, transfer of this action to some other unnamed District Court is wholly unwarranted, even by the case law cited in Plaintiff's Latest Response, *i.e.*, *Goldlawr v. Heiman*, 369 U.S. 463 (1962); and *Taylor v. Love*, 415 F.2d 1118 (6th Cir. 1969).⁶

CONCLUSION

After a year of litigation involving four complaints, the submission of several briefs and numerous hearings, the time has come to dismiss this action against Day for the reasons stated above and in his prior memoranda. There are no facts - and Plaintiff has pointed to none - to support the continuance of this action against Day any longer.

Respectfully submitted,

Richard Ernst
Counsel for Defendant
J. Edward Day

Donald J. Cohn
James V. Kearney
Webster & Sheffield
Of Counsel

Dated: July 2, 1976

^{6/} 28 U.S.C. §1406(a), which authorizes the District Court to transfer an action in which venue has been laid improperly, expressly states that the District Court shall dismiss a case laying venue in the wrong division or district unless it is in the "interest of justice" to transfer such a case. In the instant action the "interest of justice" requirement for the transfer of a case to a district in which it could have been brought has not been asserted by Plaintiff, let alone met.

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S
RESPONSE AND OPPOSITION TO MOTIONS TO DISMISS - 12

AFFIDAVIT OF SERVICE BY MAIL

STATE OF CALIFORNIA)
) ss.
City & County of San Francisco)

Kim Lacey, being first duly sworn,
deposes and says:

That I am a citizen of the United States, over the age of 18
and not a party to or interested in the within entitled cause; that my
business address is 635 Sacramento Street, San Francisco, California.

That I served by mail the following document:

REPLY BRIEF OF DEFENDANT J. EDWARD DAY TO PLAINTIFF'S RESPONSE
AND OPPOSITION TO MOTIONS TO DISMISS

in the following manner:

I enclosed a true copy of said document in an envelope
addressed as follows:

[See attached Exhibit A]

I sealed said envelope and deposited it so sealed and
addressed on the 2nd day of July, 1976, with the
postage thereon fully prepaid, in a United States post office mail box
in the City and County of San Francisco, California.

Kim Lacey
Subscribed and sworn to before me

This 2nd day of July, 1976.

Joan Fowler
Notary Public, in and for the State of
California, with principal office in the
City & County of San Francisco.

My commission expires

STAT

Approved For Release 2006/03/17 : CIA-RDP79M00467A000300130004-1

Next 2 Page(s) In Document Exempt

Approved For Release 2006/03/17 : CIA-RDP79M00467A000300130004-1